IN THE UNITED STATES BANKRUPTCY COURT
FOR THE MIDDLE DISTRICT OF PENNSYLVANIA

IN RE: JOSPEH RYAN WEBB ROBERT P. SHEILS, JR., ESQUIRE CHAPTER 7 TRUSTEE, Plaintiff v. NATIONAL DEBT RELIEF, LLC Defendant	Chapter 7 Case No. 5-20-00695 Adversary No. _____

TRUSTEE'S COMPLAINT FOR TURNOVER OF FUNDS

Statement of Jurisdiction

This adversary proceeding arises in and relates to the Chapter 7 case of JOSPEH RYAN WEBB, Case No. 5-20-00695, pending in the United States Bankruptcy Court for the Middle District of Pennsylvania.

[Pleader to state: this is a core proceeding under 28 U.S.C. § 157(b)(2) and identify the subsection.]

[Pleader to state whether it consents or does not consent to the entry of final orders or judgment by the bankruptcy court.]

NOW COMES Plaintiff, Robert P. Sheils, Jr., Esquire, Chapter 7 Trustee, by and through his counsel, Sheils Law Associates, P.C., and brings this Complaint for Turnover of Funds from the Defendant, National Debt Relief, LLC, and in support thereof avers the following:

1. This complaint is filed pursuant to 11 U.S.C. §§541 and 542.
2. On February 26, 2020, a Voluntary Petition under Chapter 7 of the United States Bankruptcy Code was filed on behalf of the Defendant, Joseph R. Webb.
3. On February 26, 2020, Trustee Sheils was appointed as Trustee for the Chapter 7 bankruptcy.
4. Plaintiff is the duly appointed, qualified and acting Trustee in Bankruptcy in the above captioned proceeding, having a place of business at 108 North Abington Road, Clarks Summit, Pennsylvania 18411.
5. Defendant is National Debt Relief, LLC, with a last known address of 11 Broadway Fl 16, New York, New York 10004-1313.
6. On his bankruptcy petition, in the Statement of Financial Affairs, Debtor indicates that he had paid $12,792.00 to Defendant, within one year before Debtor filed bankruptcy, which consisted of monthly payments of 1,066.00.
7. The Trustee has requested that Defendant turn the funds over to the estate as they are preferential payments. Two letters have been sent to Defendant requesting that the funds be turned over to the bankruptcy estate of Joseph R. Webb, but, to date, the Trustee has received no response nor have the funds been sent.
8. The Trustee has filed the instant action for turnover of funds which are considered to be an asset of the estate to be used to pay the Debtor’s creditors.
9. The bankruptcy code at §541(a)(1) describes property of the estate by stating that upon the commencement of a case, an estate is created, which is comprised of all legal or equitable interests of the debtor in property as of the commencement of the case.

10. Further, the Bankruptcy Code at §542(a) explains that an entity in possession of property that may be used, sold or leased by the Trustee or that can be exempted under section 522 of the code, shall deliver such property to the Trustee and shall account for the property.
11. The Trustee and Trustee's counsel request reimbursement for fees and costs incurred for filing this complaint as follows:

Item	Amount
Complaint Filing Fee	$350.00
Postage and Copying	$13.60
Attorney Fees	$550.00
Paralegal Fees	$230.00
Total	$1,143.60

WHEREFORE, Robert P. Sheils, Jr., Esquire, Chapter 7 Trustee, requests that this Honorable Court enter an order directing National Debt Relief, LLC, to turn over the $12,792.00 preferential payment to the bankruptcy estate of Joseph R. Webb as well as the costs of $1,143.60 associated with the drafting and filing of this Complaint.

Respectfully submitted,

SHEILS LAW ASSOCIATES, P.C.

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